

MINISTRY OF COOPERATION

NOTIFICATION

New Delhi, the 4th August, 2023

G.S.R. 591(E).— In exercise of the powers conferred by clauses (aa), (ja), (k), (ka) to (ki), (ma), (qa), (sa) to (sc), (wa), (wb), (xa) and (xb) of sub-section (2) of section 124 of the Multi-State Cooperative Societies Act, 2002 (39 of 2002), the Central Government hereby makes the following rules, further to amend the Multi-State Cooperative Societies Rules, 2002, namely: —

1. Short title and commencement.— (1) These rules may be called the Multi-State Co-operative Societies (Amendment) Rules, 2023.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. In the Multi-State Co-operative Societies Rules, 2002, (hereinafter referred to as the principal rules), in rule 2,—

(i) after clause (ii), the following clause shall be inserted, namely:—

‘(iib) “Chairperson” means the Chairperson of the Co-operative Election Authority established under sub-section (1) of section 45;’;

(ii) after clause (v), the following clause shall be inserted, namely:—

‘(va) ‘Electronic registry’ means the electronic repository or storage system set up by the Central Government under rule 37D;’;

(i) for clause (xiii), the following shall be substituted, namely: -

“(xiii) words and expressions used and not defined in these rules, but defined in the Act, the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (18 of 2016) and the Information Technology Act, 2000 (21 of 2000) or under any rules, notifications, or directions issued under those Acts, shall have the same meanings respectively assigned to them in those Acts.”.

3. In the principal rules, after Chapter 2, the following Chapter shall be inserted, namely:—

“Chapter 2A

PRUDENTIAL NORMS FOR MULTI-STATE CO-OPERATIVE SOCIETIES

11A. Prudential norms.— (1) Multi-State co-operative societies in the thrift and credit business shall be categorised on the basis of their deposits into following categories—

- (a) micro;
- (b) small;
- (c) medium; and
- (d) large.

(2) Prudential norms for different categories of societies referred to in sub-rule (1) may be notified by the Central Government, which includes—

- (a) minimum aggregate value of paid-up capital and authorised share capital required for commencement of business in case of new registration;
- (b) categorisation of capital into various tiers and limits for each tier;
- (c) capital adequacy ratio and risk weightage of different items;
- (d) requirement of buffers for liquidity management;
- (e) exposure limits in case of individual or group borrowers, aggregate borrowers and sectoral borrowers;
- (f) norms for branch expansion; and
- (g) disclosures.

11B. Restrictions on grant of loans by a multi-State co-operative society.— (1) No multi-State co-operative society shall grant loan or make advances against the security of its own shares.

(2) The total amount of loans granted by a multi-State co-operative society to the members of its board, including their relatives, and outstanding against them in the aggregate shall not exceed ten per cent. of the total amount of all the loans granted by the society and outstanding against its members, at any time.

(3) No multi-State co-operative society shall give, whether directly or indirectly, and whether by means of a loan, guarantee, the provision of security or otherwise, any financial assistance for the purpose of, or in connection with, a purchase or subscription made or to be made, by any person of or for any shares in that multi-State co-operative society.”.

4. In the principal rules, for rule 19, the following rules shall be substituted, namely:—

“19. Composition of Selection Committee.— (1) The Chairperson of the Authority, the Vice-Chairperson and every Member thereof shall be appointed by the Central Government on the recommendations of a Selection Committee consisting of —

- (a) Secretary, Ministry of Cooperation, - Chairperson, *ex officio*;
- (b) Central Registrar, Member, *ex officio*;
- (c) Additional Secretary, Ministry of Law and Justice, Department of Legal Affairs, Member, *ex officio*; and
- (d) two experts from the co-operative sector to be nominated by the Minister in-charge of the Ministry of Cooperation.

(2) The Selection Committee may regulate its own procedure for recommending the names for selection of Chairperson, Vice-Chairperson and Members of the Authority.

19A. Qualification and experience for appointment as Member of Authority.— No Member shall be appointed to the Authority, unless he is a person of ability, integrity and standing who has knowledge and experience for a period not less than ten years in the field of co-operatives, law or public administration:

Provided that at least one Member appointed to the Authority shall be a woman.

19B. Salaries, allowances, and conditions of service of Chairperson, Vice-Chairperson and Members of the Authority.— (1) The Chairperson shall receive such pay including dearness allowance and other allowances as admissible to an Additional Secretary to the Government of India.

(2) The Vice-Chairperson shall receive such pay including dearness allowance and other allowances as admissible to a Joint Secretary to the Government of India.

(3) The Members of the Authority shall receive such pay including dearness allowance and other allowances as admissible to a Director to the Government of India.

(4) In case of appointment of a person as Chairperson, Vice-Chairperson or Member, who is in receipt of, or has received, or has become entitled to receive any retirement benefits by way of pension, the pay and allowances of such Chairperson, Vice-Chairperson or Member, as the case may be, shall be reduced by gross amount of pension, if any, drawn or to be drawn by him.

(5) The Chairperson while on tour or on transfer (including the journey undertaken to join the Authority or on the expiry of his term with the Authority proceeds to his hometown) shall be entitled to the travelling allowances, daily allowances, transportation of personal effects and other similar allowances admissible for an Additional Secretary to the Government of India.

(6) The Vice-Chairperson, while on tour or on transfer (including the journey undertaken to join the Authority or on the expiry of his term with the Authority proceeds to his hometown) shall be entitled to the travelling allowances, daily allowances, transportation of personal effects and other similar allowances admissible for a Joint Secretary to the Government of India.

(7) A Member, while on tour or on transfer (including the journey undertaken to join the Authority or on the expiry of his term with the Authority proceeds to his hometown) shall be entitled to the travelling allowances, daily allowances, transportation of personal effects and other similar allowances admissible for a Director to the Government of India.

(8) The Chairperson, Vice-Chairperson and Members shall not be entitled to government accommodation, but shall be entitled to House Rent Allowance applicable to the respective grade officers in the Government of India.

(9) The Chairperson, Vice-Chairperson and Members are not entitled for any sitting fee for attending the meetings of the Authority.

(10) If the conditions of service of the Chairperson, Vice-Chairperson and Members of the Authority under these rules do not provide for any express provision regarding any specific issue, then the same shall be referred to the Central Government for its decision in each case, and the decision of the Central Government thereon shall be final.

19C. Powers and functions of Chairperson.—(1) The Chairperson shall be the administrative head of the Authority and shall have all the administrative and financial powers.

(2) The Chairperson shall have powers of general superintendence and directions in the conduct of the affairs of the Authority.

(3) The Chairperson shall preside over the meetings of the Authority.

(4) The Chairperson shall fix the date, time and place of meetings of the Authority and approve the items of agenda for the meetings.

(5) If meetings of the Authority are to be held in a location other than its Head Office, it shall be at the discretion of the Chairperson.

(6) The Chairperson may include any additional item in the agenda of the meeting, which was not included in the agenda of the meeting for consideration by the Authority.

(7) The Chairperson may grant leave of absence to the Members of the Authority upon advance application by the Members seeking such leave.

19D. Procedure of inquiry against Chairperson, Vice-Chairperson and Members of Co-operative Election Authority.— (1) The Chairperson, Vice-Chairperson or a Member of the Authority shall be removed from office by an order of the Central Government, on the grounds specified in section 45B, after conducting an inquiry as required under sub-section (2) of section 45B.

(2) For holding an inquiry under sub-section (2) of section 45B, the Central Government shall issue a notice to the Chairperson, Vice-Chairperson or a Member, as the case may be, why an inquiry should not be conducted and specifying the reasons and grounds for such inquiry and requiring him to submit his response on the grounds within such period as may be specified in the notice (being not less than fourteen days from the date of service thereof).

(3) After considering the response, if any, submitted by such person, if the Central Government is of the opinion that an inquiry should be held, the Central Government shall appoint an Inquiry Officer who shall issue a notice fixing a date for the appearance of that person either personally or other authorised representative.

(4) On the date fixed for appearance, the Inquiry Officer shall explain the person concerned to proceeded about the ground invoked against him.

(5) The Inquiry Officer shall give an opportunity to such person to produce documents or evidence as he may consider relevant to the inquiry and if necessary and the hearing may be adjourned to a future date and in taking such evidence the Inquiry Officer shall not be bound to observe the procedures provided under the provisions of the Indian Evidence Act, 1872 (1 of 1872):

Provided that the notice and the personal hearing may be waived at the request of the person concerned.

Provided further that while holding an inquiry under this rule, the Inquiry Officer shall have the power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the case to give evidence or to produce any document which, in the opinion of the Inquiry Officer, may be useful for or relevant to, the subject-matter of the inquiry and if any person fails, neglects, or refuses to appear before the Inquiry Officer, the Inquiry Officer may proceed with the inquiry in the absence of such person after recording the reasons for doing so.

(6) The inquiry shall be completed within a period of six months from the date of issue of notice by the Inquiry Officer and the report on the findings of the inquiry shall be submitted to the Central Government.

19E. Meetings of Authority.— (1) The Authority shall meet, as often as may be necessary, to transact its business.

(2) The Authority shall determine its own procedure for holding the meetings and distribution of work amongst themselves.

(3) The quorum for meetings of the Authority shall not be less than three members, including the Chairperson and Vice-Chairperson.

(4) In case of any vacancy, the quorum may be proportionately reduced, with the approval of the Central Government.

19F. Powers and functions of Co-operative Election Authority.— In order to conduct the elections to the co-operative societies, the Authority shall have the following powers, namely :—

(a) to appoint any person from a panel prepared for the purpose, including an officer or employee, serving or retired, of any multi- State co-operative society, the State Government or the Central Government on any post with such designation and duties, for the purpose of conducting the elections, including the Observers, Returning Officers and Assistant Returning Officers:

Provided that, such officer or employee shall work under the general superintendence and control of the Authority for the purposes of election;

(b) to requisition any premises, vehicles, services, information, documents, personnel, funds, expenses, materials, or any other assistance from the multi-State co-operative society whose election is being conducted, as he may deem necessary and on service of such requisition, it shall be obligatory on the multi-State co-operative society to whom such requisition is made, to forthwith hand over the possession of premises, vehicles or any other material, or provide any such assistance, as the case may be, to the Authority or any person authorised by them on that behalf;

(c) to provide and enforce the code of conduct on the multi-State co-operative society whose election is being conducted, to be implemented in the area of operation of the multi-State co-operative society according to the nature of business or class of societies;

(d) to appoint Observers, who shall be appointed to supervise elections and discharge such other functions referred to in rule 20A; and

(e) to issue such other special or general orders or directions for fair and free elections, which shall not be inconsistent with the provisions of the Act.

19G. Procedure for conduct of elections.— (1) The election of members of the board shall be conducted by a Returning Officer, to be appointed by the Authority and the Returning Officer so appointed shall not be a member or an employee of the multi-State co-operative society:

Provided, that the Authority may also appoint one or more persons to be called as the Assistant Returning Officer to assist the Returning Officer, for the conduct of the election to the society.

(2) Every Assistant Returning Officer, shall, subject to the control of the Returning Officer and general control of the Authority, be competent to perform all or any of the functions of the Returning Officer:

Provided that, no Assistant Returning Officer shall perform the functions of the Returning Officer relating to the scrutiny of nominations unless the Returning Officer is unavoidably prevented from performing the said function.

19H. Procedure for conduct of election to the board of multi-State co-operative societies.—(1) The Chairperson and the Chief Executive of the multi-State co-operative society shall inform the Authority at least six months before the expiry of the term of the board, to conduct elections within time and a copy of the information shall also be sent to the Central Registrar.

(2) Within a period of one month from the date of receipt of such information under sub-rule (1), the Authority shall notify the election programme, including the election to the members of the Board and subsequent elections to the posts of office bearers of the multi-State co-operative society and such programme shall include the date of the general meeting wherein elections shall be held:

Provided that the provisions of this sub-rule shall also apply to multi-State co-operative societies under the control of the administrator appointed under sub-section (1) of section 123.

Provided further that an administrator appointed under sub-section (1) of section 123 shall perform the functions of the board in respect of the society to which he has been appointed as administrator.

(3) The Authority shall appoint a Returning Officer to conduct the elections in respect of the societies referred to in this rule.

(4) The Returning Officer appointed under rule (3) shall send intimation regarding date, time and place of the general meeting to each of the members of the multi-State co-operative society and the Returning Officer may also send such intimation electronically, wherever possible.

(5) Where other co-operative societies or multi-State co-operative societies are members, the Returning Officer shall call on such societies to send the name of their Chairperson or President or the Chief Executive or a duly authorised member of the board of such co-operative society or other multi-State co-operative society as representative (hereinafter referred to as the delegate) in accordance with the provisions contained in sub-section (3) of section 38 together with the resolution of the board of the society and the specimen signature of the Chairperson or President or the Chief Executive or duly authorised member of the board, duly attested and bearing the seal of the society so as to reach him at least twenty-one clear days prior to the date fixed for the general meeting.

(6) Where there is no board of such co-operative society or other multi-State cooperative society, the administrator, or duly authorised administrator, if there are more than one administrators, by whatever name called, shall intimate the Returning Officer in writing under his signature at least twenty-one clear days prior to the date fixed for the general meeting that he or the Chief Executive shall represent such society in the general meeting and where no such resolution or communication intimating the name of the delegate is received by the date fixed or where any intimation changing the name of the delegate is received after such date, it shall not be accepted for inclusion in the list of members or delegates of member-societies.

(7) Fresh resolution shall be required for every general meeting at which election shall be held.

(8) It shall be the duty of the board of directors in office, or the administrator, as the case may be, to bring up to date the register of members and such other registers, as the Returning Officer may require and hand over such records, register or registers to the Returning Officer thirty days prior to the date fixed for the general meeting for the purpose of conducting the election.

(9) The election shall be held at a general meeting of the society convened for the purpose, of which not less than fourteen days' prior notice shall be given to the members.

(10) For the conduct of elections, the Returning Officer shall preside over the meeting, under the supervision of the Authority.

(11) Notice for holding the general meeting shall also be affixed on the notice board of the Multi-State Co-operative Society and its branches, if any, and the notice shall contain the following information, namely:—

- (a) the number of vacancies to be filled by election;
- (b) the area of the constituency (specified in the bye-laws) from which the members are to be elected;
- (c) the qualifications, if any, specified in the bye-laws for eligibility for membership on the board;
- (d) the name of the returning officer, date, place and hours between which nomination paper shall be filed by the members, such date being not less than one clear day before the date fixed for election or if that happens to be a holiday the day preceding which is not a public holiday.

Explanation.— For the purpose of this sub-rule, the term 'public holiday' means any day which is declared as a public holiday under section 25 of the Negotiable Instruments Act, 1981 (26 of 1881) or any day which has been notified by the Central Government or the State Government, as the case may be, to be a public holiday to the offices of the Central Government or the State Government, as the case may be;

(e) the date on which and the time and place at which the nomination papers shall be taken up for scrutiny; and

(f) the date and time of which, the place at which and the time between which, the polling shall take place.

19-I. Preparation of list of members and delegates.—(1) The Returning Officer shall prepare a list of members eligible to vote as it stood on the date, thirty days prior to the date fixed for the poll and publish copies of the list by affixing them on the notice board at the principal place of business of the society and all its branches, if any, not less than fifteen days prior to the date fixed for election and the list shall specify—

- (a) the admission number and name of the member, the name of the father or husband and the address of such member in the case of an individual member; and
- (b) the admission number, the name of the society, name of the delegate proposed to represent the society, in the case of a member society; the admission number, the name of the society, name of the delegate and the name of the constituency proposed to represent in the case of a member society and the admission number, the name of the delegate and the name of the constituency where a smaller body has been constituted under proviso to sub-section (1) of section 38.

(2) A copy of the list shall be supplied by the society to any member on payment of such fee as may be specified by the board and where no fee has been specified, the person authorised as per bye-laws of the society shall supply such list on payment of rupees ten.

(3) The Returning Officer shall also publish the election programme, as notified by the Authority, specifying the date and time of receipt of nominations, scrutiny of nominations, withdrawal of nominations, the poll, if required, and declaration of results and the election programme shall also be displayed on the notice board of the society and shall also be published in the newspaper circulated in the area of operation of the multi-State co-operative society at least fifteen days prior to the date of election.

19J. Nomination of candidates.— (1) Nomination of the candidate for election shall be made in Form III, which shall be supplied on request, by the Returning Officer or any other officer authorised by him in this behalf, to any member of the society free of cost.

(2) Every nomination form shall be signed by two members whose names are included in the list of the members or delegates and one of the members shall sign the Form as proposer and the other as seconder for the nomination and the nomination Form shall also contain a declaration signed by the candidate, expressing his willingness to contest the election.

(3) Nomination Form may be presented in person by the candidate himself to the Returning Officer or by any person authorised by him in this behalf, before the date and time specified for submission of nomination Form as per the election programme and the Returning Officer or any other officer authorised by him, who receives the nomination Form, shall enter on the nomination Form its serial number and certify the date and time at which the nomination

Form has been received by him and shall immediately give a written acknowledgement for the receipt of such nomination Form, which shall also bear the seal of the society.

(4) The Returning Officer shall, at the close of the time fixed for the receipt of nomination Forms, prepare and display on the notice board of the society, a list of nominations received by him and any nomination Form submitted after the date and time fixed for its receipt, shall be rejected.

(5) No person shall be nominated as a candidate for election to fill a seat on the board if he—

- (a) is ineligible to vote;
- (b) is not qualified or is disqualified to be the member of a multi-State co-operative society or a member of the board under the provisions of the Act and the rules made thereunder; and
- (c) does not possess the necessary qualifications specified in the bye-laws of the society for election as member of the board.

19K. Compliance with sections 43 and 44 of the Act.— The eligibility of the candidates for the election of members of the board and office bearers shall be subject to the provisions contained in sections 43 and 44 of the Act.

19L. Scrutiny of nomination papers.—(1) On the day fixed for the scrutiny of nomination papers,—

(a) the Returning Officer shall, at the appointed hours, take up the scrutiny of nomination Forms and the candidate or the proposer or seconder of each of the candidates may be present at the time and place when nomination papers are scrutinised;

(b) the Returning Officer shall examine the nomination Forms and shall decide all objections which may be made by any candidate or his proposer or seconder in respect of any nomination and may, either accept or reject any nomination:

Provided that the nomination of a candidate shall not be rejected on the ground of an incorrect description of his name or the name of his proposer or seconder or of any other particulars relating to the candidate or his proposer or seconder, as entered in the list of members; if the identity of the candidate, proposer or seconder, as the case may be, is established beyond reasonable doubt;

(c) the Returning Officer shall endorse on each nomination Form his decision of accepting or rejecting the same, as the case may be, and if the nomination paper is rejected, he shall record in writing a brief statement of his reasons for such rejection;

(d) the Returning Officer shall not allow any adjournment of the proceedings except when proceedings are interrupted or obstructed by a riot or affray or by any other cause beyond his control; and

(e) list of valid nominations accepted by the Returning Officer shall be published on the notice board of the society containing the names in the alphabetical order in English and address of the candidates as given in the nomination paper.

(2) Any candidate may withdraw his candidature by notice in writing signed by him and delivered in person or by the person duly authorised by him at any time after the presentation of the nomination Form, but before the date and time specified in the election programme for such withdrawal and the notice for withdrawal of candidature given by the candidate shall be irrevocable.

19M. Voting.— (1) If for any area or constituency for which election is to be held, the number of candidates whose nomination Forms have been declared valid, does not exceed the number of candidates to be elected for that area or constituency, the Returning Officer shall at the general meeting convened for the purpose of the election, declare them to have been duly elected to the board, with the approval of the Authority and if the number of candidates whose nominations are valid exceeds the number of vacancies to be elected for any area or constituency, the Returning Officer shall arrange for conducting the poll on the date and time fixed for the purpose and the Returning Officer may appoint as many polling officers as may be necessary for the conduct of the poll.

(2) A candidate contesting the election, may by a letter, in Form IV, to the Returning Officer, appoint an agent to represent him where polling is held, to identify the voters and to watch the recording of votes and such letter shall also contain the consent in writing of the agent concerned.

(3) Canvassing of votes by any person at the place where elections are to be conducted shall be prohibited.

(4) Before the commencement of the poll, the Returning Officer shall show the empty ballot box to the persons present at the time of commencement of the poll and shall then lock it up and affix his seal to prevent it being opened without breaking the seal and the candidate or his agent may also affix his own seal, if he so desires.

(5) Every member or delegate who desires to exercise his right of vote shall be supplied with a ballot paper containing the names of contesting candidates arranged in alphabetical order either printed, typewritten or cyclostyled,

according to convenience, on the ballot paper and the ballot paper shall bear the seal of the society and also the initials of the Returning Officer on the reverse of the ballot paper and contain a column, for the voter to inscribe mark 'X' against the name or names of the persons to whom he intends to cast his vote.

(6) In every polling station, where there is more than one polling booth, each such booth shall contain a separate compartment in which the members or delegates can cast their votes in secrecy.

(7) Every member who desires to cast his votes shall enter the polling station with an identity card, given to him by the society; the polling officer shall identify the member by putting questions to him with reference to the list of members or delegates eligible to vote in the polling station, furnished to him and if the polling officer is satisfied with the identity of the member, and if there is no objection from any candidate or his polling agent present at the polling station, he shall issue a ballot paper to him after obtaining signature or thumb impression of the member or delegate on counterfoil perforated with the ballot paper and the counterfoil shall bear the serial number and other details of the ballot paper and on receipt of such ballot paper, the member shall proceed to the polling compartment set apart for the purpose and indicate the person or persons in whose favour he exercises his vote by inscribing a mark 'X' against the name of the candidate or candidates, as the case may be, and put the ballot paper in the ballot box kept for the purpose with utmost secrecy:

Provided that if owing to blindness or other physical infirmity or illiteracy a member is unable to inscribe the mark on the ballot paper, the polling officer, and where no such polling officer is appointed, the Returning Officer shall ascertain from him the candidate or candidates, in whose favour he desired to vote, inscribe the mark 'X' on his behalf and put the ballot paper in the ballot box.

(8) Every member whose name is entered in the list of members or delegates furnished to the polling officer, shall be eligible to cast his vote unless there is a challenge by the candidate or his agent against his identity and if there is any such challenge about the identity of a member or if the polling officer feels any reasonable doubt, he shall then refer the matter to the Returning Officer, who shall make a summary inquiry and decide the question with regard to the identity of such persons on the basis of records of the society.

(9) The Returning Officer shall not entertain any challenge by a candidate or his polling agent, of a member's identity until the person who challenges pays a fee of rupees five for every such vote and the Returning Officer shall thereafter entertain the challenge and ask the member who has come to poll the vote to affix his thumb impression or signature, as the case may be, on a declaration describing his identity and if he refuses to do so, the member shall not be allowed to vote and if as a result of such summary inquiry, the identity of the member is established to the satisfaction of the Returning Officer, the polling officer shall issue ballot paper, and the member shall then be allowed to cast his vote and in such cases, the challenge fees paid shall be forfeited.

(10) At the end of the poll, the Returning Officer, shall prepare an account of challenge fees collected, fees refunded to the persons who challenged, and the fees forfeited to the society together with a brief note on the decision arrived at by him after the summary inquiry in each case.

(11) If, at any stage of the polling, the proceedings are interrupted or obstructed by any riot or affray or if at such election it is not possible to conduct poll for any sufficient cause, the Returning Officer shall have the power to cancel the polling, after recording the reasons for such cancellation.

(12) No voter shall be permitted to cast his vote after the time fixed for the polling:

Provided that a voter who enters the premises before the closure of the polling time, shall be issued the ballot paper and be allowed to cast his vote.

(13) The counting of votes shall take place immediately after closure of the poll and if it is not possible to count the votes immediately, for reasons beyond the control of the Returning Officer, the ballot box shall be sealed with the seal of the Returning Officer and of the contesting candidates or of their agents, if they so desire, and deposited with the society for safe custody and in such cases the Returning Officer shall then announce, and also, intimate in writing to the candidates or their agents, the time and place at which the counting shall commence on next day and the votes shall be counted by or under the supervision of the Returning Officer on the next day and every candidate and his authorised agent shall have a right to be present at the time of counting and the absence of any candidate or his agent at the time of counting shall not vitiate counting or announcement of results by the Returning Officer.

(14) After the Returning Officer has completed the counting of votes, he shall prepare a return of the results of the polling and shall forthwith declare the results, with the prior approval of the Authority.

(15) The Returning Officer shall immediately after the declaration of the results, record the proceedings of the election in a report which shall form part of the records of the society and the Returning Officer shall immediately furnish a copy of such a report together with a copy of the return of the results of polling to the multi-State co-operative society and the Authority.

19N. Election of office bearers by secret ballot.— (1) As soon as the members of the board have been elected, the Returning Officer shall, notwithstanding anything contained in the bye-laws of the multi-State co-operative society, convene a meeting of the newly constituted board for the purpose of election of the President or Chairperson, Vice-President or Vice-Chairperson or other elected office bearers of the society, by whatever name they are called, in accordance with the directions of the Authority and such meeting shall not be conducted unless majority of the newly elected members of the board are present, as per bye-laws of the society.

(2) At the meeting so convened by the Returning Officer, he shall preside over the meeting for the purpose of election of the office bearers by secret ballot.

(3) The Returning Officer shall announce the schedule of election of office bearers, stating the number of vacancies to be filled by election, date, place and time between which nomination Forms may be filled by the members; the date on which and the time and place at which the nomination Forms shall be taken up for scrutiny; the date and time of withdrawal; and the date on which, the place at which the polling, if required, may take place and the Returning Officer shall intimate the schedule of election to all the newly elected members of the board and the intending members may submit their nomination, in Form V, to the Returning Officer at such meeting and the Returning Officer shall decide the objections if any, which may be made at the time, to any nomination and after making such summary inquiry, as he thinks necessary, announce the list of valid nominations.

(4) If for any office, for which elections are to be held, the number of nomination of candidates in respect of an office, does not exceed the number of vacancies to be filled for that office, the candidates who have filed valid nominations shall be deemed to have been elected for that office and the Returning Officer shall make a declaration to that effect, with the prior approval of the Authority and if the number nomination of candidates in respect of an office, exceeds the number of vacancies to be filled for that office, a poll by secret ballot shall be conducted by the Returning Officer and he shall, thereafter, announce the number of votes secured by each candidate..

(5) The Returning Officer shall thereafter record the proceedings of the election of the office bearers in a report which shall form part of the records of the society and the Returning Officer shall also furnish a copy of such report together with a copy of the return of the polling, to the Authority.

(6) The result of the election shall be declared by the Returning Officer, with prior approval of the Authority.

(7) The certificate of election shall be issued immediately by the Chief Executive of the multi-State co-operative society, after declaration of results by the Returning Officer.

19-O. Admission to the place fixed for counting.— (1) The Returning Officer shall exclude from place fixed for counting of votes all persons except,—

- (a) such persons as he may appoint to assist him in the counting;
- (b) persons authorised by the Returning Officer;
- (c) public servants on duty in connection with the election; and
- (d) candidates.

(2) No person, who has been otherwise working for a candidate in the election, shall be appointed under clause (a) of sub-rule (1).

(3) Any person, who during the counting of votes misconducts himself or fails to obey the lawful directions of the Returning Officer, may be removed from the place where the votes are being counted by the Returning Officer or by any police official on election duty or by any person authorised in this behalf by the Returning Officer.

19P. Rejection of ballot paper.— (1) A ballot paper shall be rejected by the Returning Officer, if,—

- (a) it bears any mark or writing by which the member who voted can be identified; or
- (b) it does not bear the seal of the society or the initial of the Returning Officer; or
- (c) the mark indicating the vote thereon is placed in such a manner as to make it doubtful to which candidate the vote has been casted; or
- (d) is so damaged or mutilated that its identity as a genuine ballot paper cannot be established.

(2) If after the counting of the votes is completed, an equality of votes is found to exist between any candidates and the addition of one vote will entail any of those candidates to be declared as elected, the Returning Officer shall forthwith decide between the candidates by lottery and proceed as if the candidate had received an additional vote and declare him as elected.

19Q. Custody of record of elections conducted.— After declaration of the result of election, the Returning Officer shall hand over the ballot papers and records relating to the election of the members of the board and the office bearers to the Chief Executive of the multi-State co-operative society in a sealed cover and all the documents relating to the

election shall be safely preserved by the Chief Executive of the society for a period of six months from the date of election or till such time a dispute regarding election, if any, filed is disposed of, whichever is later, and shall thereafter be destroyed.

19R. Death of candidate before poll.— If a contesting candidate dies and a report of his death is received by the Returning Officer before the commencement of the poll, the Returning Officer shall, upon being satisfied of the fact of the death of candidate, countermand the poll and inform the Authority along with the proceedings with reference to the election, and the election shall be commenced in all respect, as if for a new election:

Provided that no further nomination shall be necessary in the case of a person who was a contesting candidate at the time of the countermanding of the poll:

Provided further that no person who has given a notice of withdrawal of his candidature before the countermanding of the poll shall be eligible for being nominated as a candidate for the election after such countermanding:

Provided also that no fresh notice of withdrawal by the candidate whose nomination is accepted before the countermanding shall be accepted by the Returning Officer for the election after such countermanding.

19S. Preparation of electronic voting machines for polls.—If the Authority decides to use an electronic voting machine for the poll, it shall direct the procedure thereof, which shall, as far as is technically feasible be in accordance with these rules.

19T. Election expenses.— All election related expenditure including stationary, printing, postage, xerox, fax, rent for the ballot boxes, indelible ink, police security and such other items of expenditure related to the election of representatives or directors of a multi-State co-operative society, such as preparation of electoral roll, travelling and other allowances and remuneration payable to the Returning Officer, Assistant Returning Officer and other polling personnel shall be borne by the society and paid to the Authority.

19U. Account of election expenses.— (1) Every candidate at an election shall keep a separate and correct account of all expenditure in connection with the election incurred or authorised by him between the date of the order calling the election and the date of declaration of the result thereof, both dates inclusive within the period of thirty days from the date of declaration of the result.

(2) The account shall contain such particulars as may be specified from time to time in addition to the particulars referred to in rule 19W.

(3) The total expenditure shall not exceed the amount as may be specified by the Authority from time to time.

(4) Every contesting candidate at an election shall lodge with the Returning Officer an account of his election expenses within the time and in the manner specified by the Authority from time to time.

19V. Disqualification for failure to lodge account of election expenses.— If the Authority, based on a report from the Returning Officer, is satisfied that a person has failed to lodge an account of election expenses within the time and in the manner specified in rule 19U and has no good reason or justification for such failure, the Authority shall, by order published in the Official Gazette, declare him to be disqualified for being elected as, and for being, a member of the board of any society, and any such person shall be disqualified for a period of three years from the date of the order.

19W. Particulars of account of election expenses.— (1) The account of election expenses to be kept by a candidate shall contain the following particulars in respect of each item of expenditure from day to day, namely:—

- (a) date on which the expenditure was incurred or authorised;
- (b) nature of the expenditure (as for example, travelling, postage or printing etc.);
- (c) amount of the expenditure:—
 - (i) amount paid;
 - (ii) amount outstanding;
- (d) date of payment;
- (e) name and address of the payee ;
- (f) serial number of voucher, in the case of amount paid;
- (g) serial number of bills, if any, in case of amount outstanding;
- (h) name and address of the person to whom the amount outstanding is payable.

(2) All the vouchers shall be lodged along with the account of election expenses, arranged according to the date of payment and serially numbered by the candidate and such serial numbers shall be entered in the account under item (f) of sub-rule (1).

(3) It shall not be necessary to give the particulars mentioned in item (c) of sub-rule (1) in respect of items of expenditure, for which vouchers have not been obtained.

19X. Notice by Returning Officer for inspection of accounts.— The Returning Officer may, within two days from the date on which the account of election expenses has been lodged by a candidate, cause a notice to be affixed to his notice board, specifying—

- (a) the date on which the account has been lodged;
- (b) the name of the candidate; and
- (c) the time and place at which such account may be inspected.

19Y. Casual vacancies how to be filled in.— (1) In the event of casual vacancy occurring on account of death, resignation, disqualification or removal of the member of the board of a society or if any member becomes incapable of acting prior to the expiry of his term of office or otherwise, subject to the conditions specified in sub-section (5) of section 45J of the Act, the Chief Executive of the multi-State co-operative society shall communicate such vacancies, within a week of its occurrence, to the Authority, who shall take action to fill the vacancies, according to the provisions of section 45J of the Act.

(2) Any person, who gets filled in the casual vacancy as per the provisions of section 45J of the Act shall hold office for the remainder of the period of the members of the board in whose place, such member has been filled.

19Z. Maintenance of secrecy of voting.— Every officer, clerk, agent, or other person who performs any duty in connection with the recording or counting of votes at an election shall maintain, and aid in maintaining the secrecy of the voting and shall not (except for some purposes authorised by or under any law) communicate to any person any information relating to such voting.”

5. In the principal rules, for rule 20, the following rules shall be substituted, namely:—

“20. Officers, etc., at an election, not to act for candidates or to influence voting.— (1) No person who is a Returning Officer or an Assistant Returning Officer or a Presiding or Polling Officer at an election, or an officer or clerk appointed by the Returning Officer to perform any duty in connection with an election, shall, in the conduct or the management of the election do any act (other than the giving of vote, if eligible as member) for the furtherance of the prospects of the election of a candidate.

(2) No such person as aforesaid, and no member of a Police Force, shall—

- (a) persuade any person to give his vote at an election;
- (b) dissuade any person from giving his vote at an election; or
- (c) influence the voting of any person at an election in any manner.

20A. Functions of Observers.— The functions of observers appointed by the Authority shall be to supervise the entire election process, and give directions to the Returning Officer and other officers, subject to the general control and superintendence of the Authority, to ensure the smooth and fair conduct of elections of a multi-State co-operative society.

20B. Directions by the Co-operative Election Authority.— Subject to the provisions of the Act and the rules made thereunder, the Co-operative Election Authority may issue directions from time to time, as may be necessary for the conduct of free and fair elections and the Board, members, Chief Executive and staff of the multi-State co-operative society shall comply with such directions issued by the Authority.”

6. In the principal rules, for rule 25, the following rule shall be substituted, namely:—

“25. The Co-operative Education Fund.— (1) Every multi-State cooperative society shall credit a sum calculated at one per cent. of its net profits every year as contribution, within six months from the closing of the relevant financial year, towards the account of the Co-operative Education Fund, maintained by the Central Government.

(2) The Co-operative Education Fund shall be maintained and administered by a Committee constituted by the Central Government, consisting of the following members, namely:—

- (a) The Secretary, Ministry of Co-operation - Chairperson;

- (b) The Central Registrar – Member;
- (c) The Financial Adviser to the Ministry of Co-operation – Member;
- (d) Two representatives of multi-State co-operative societies to be nominated by the Central Government on rotation basis for every two years – Members;
- (e) The Secretary, National Council of Co-operative Training, New Delhi– Member;
- (f) The Chief Executive Officer, National Co-operative Union of India Limited, New Delhi - Member
- (g) The Director, Vaikunth Mehta National Institute of Co-operative Management, Pune – Member; and
- (h) Representative from National Co-operative University.

(3) The Central Government shall maintain the Co-operative Education Fund in a separate account, and all income by way of interest or otherwise accruing from the contribution towards the fund, shall be credited to the Fund.

(4) No expenditure out of the Co-operative Education Fund shall be incurred without the approval of the Committee constituted under sub-rule (2).

(5) The balance standing in the Co-operative Education Fund maintained by the National Co-operative Union of India Ltd., shall be transferred by the Chief Executive Officer of the National Co-operative Union of India to the Co-operative Education Fund maintained by the Central Government on the date of the notification of these rules.

(6) Subject to such directions as the Committee may give from time to time, the Co-operative Education Fund may be utilised for any of the following purposes, namely:—

- (a) education of the members, directors including office-bearers and employees of multi-State co-operative societies and the general public in the principles and practice of co-operation;
- (b) human resource development in multi-State co-operative societies;
- (c) development of multi-State co-operative societies;
- (d) capacity building and business management;
- (e) professionalisation;
- (f) technical upgradation;
- (g) education, training, national co-operative database, research, manpower and power and related infrastructure;
- (h) research and development;
- (i) development of the co-operative movement in general;
- (j) co-operative awareness and publicity;
- (k) publication of books and journals relating to the cooperative movement;
- (l) conduct of research, case studies and education in the field of co-operative movement;
- (m) award of prize, or honorarium for rendering meritorious service to the cause of the multi-State co-operative movement; and
- (n) any other purpose as may be determined by the Central Government for strengthening the co-operative movement.”.

7. In the principal rules, after Chapter 5, the following Chapter shall be inserted, namely:—

‘CHAPTER 5A**CO-OPERATIVE OMBUDSMAN**

30A. Appointment and Jurisdiction of Ombudsman.— (1) The Central Government may appoint one or more Co-operative Ombudsmen, to carry out the functions entrusted to such Ombudsman under provisions of the Act and the Central Government shall notify the territorial jurisdiction of each Ombudsman so appointed.

(2) The Ombudsman shall be an individual having professional experience of minimum ten years, a post-graduate degree from any recognised University in India or equivalent, and special knowledge or experience in co-operative management, banking, accountancy, law, public administration or a serving or retired judicial officer not below the rank of District Judge or a serving or retired officer of the Central or State Government, not below the rank of Director.

(3) The Ombudsman shall receive such pay including the dearness allowance and other allowances admissible to a Director in the Government of India.

(4) In the case of an appointment of a person who is in receipt of, or has received, or has become entitled to receive any retirement benefits by way of pension, the pay and allowances of such person shall be reduced by gross amount of pension, if any, drawn or to be drawn by him.

(5) An Ombudsman, while on tour or on transfer (including the journey undertaken to join the office or on the expiry of his term with the office proceeds to his hometown) shall be entitled to the travelling allowances, daily allowances, transportation of personal effects at the same scale and at the same rate as are applicable for a Director to the Government of India.

(6) The Ombudsman shall not be entitled to government accommodation but shall be eligible to draw the house rent allowance applicable for a Director to the Government of India.

(7) For multi-State Co-operative Society Banks, the Ombudsmen shall be appointed by the Reserve Bank of India.

30B. Tenure of Ombudsman.— The term of office of the Ombudsman shall be three years from the date on which he enter office or till he attains the age of seventy years, whichever is earlier, and he shall be eligible for re-appointment for one more term.

30C. Office of Ombudsman.— The office of the Ombudsman shall be at such place as may be notified by the Central Government.

30D. Officers and staff.—The Central Government may provide such officers and staff to the Ombudsman, as it may think necessary for the discharge of functions by the Ombudsman.

30E. Complaints or appeals that may be considered by the Ombudsman.— The Ombudsman shall consider the following categories of complaints or appeals, from members, as the case may be—

- (a) complaints by members regarding their deposits, equitable benefits of the multi-State co-operative society's functioning; and any other issue affecting such member's individual rights, under sub-section (1) of section 85A; and
- (b) appeals preferred under sub-section (4) of section 106, by members against the order passed by the Co-operative Information officer:

Provided that any dispute which is the subject matter of any past or ongoing arbitration proceedings under section 84, or any other pending or settled proceedings shall stand excluded from the jurisdiction of the Ombudsman.

30F. Nature of complainant or appellant before the Ombudsman.— An aggrieved member of a multi-State co-operative society may file a complaint or prefer an appeal, as the case may be, before the Ombudsman either personally or through an authorised representative:

Provided that for the purposes of this rule and the filing of a complaint or an appeal before the Ombudsman, the “authorised representative” shall not include an advocate.

30G. Non-maintainability of complaint or appeal.— (1) A complaint or an appeal, as the case may be, shall not lie unless the following conditions are fulfilled—

- (a) in an appeal under sub-section (4) of section 106 of the Act, the appeal shall be filed within a period of one month from the date of such order being challenged;

(b) in a complaint under sub-section (1) of section 85A of the Act—

(A) the complainant had, before approaching the Ombudsman made a written representation on the issue to the multi-State co-operative society, and if—

- (i) such representation was rejected;
- (ii) no reply was received within a period of one month after submitting the representation; or
- (iii) the complainant is not satisfied with such reply.

(B) the complaint is filed not later than one month after the complainant has received the reply of the multi-State co-operative society or, where no reply is received, not later than two months after such representation was made;

(c) the complaint or appeal is not abusive or frivolous or vexatious in nature; and

(d) the complainant or appellant provides complete information required for disposal of the complaint.

(2) No complaint shall be made or no appeal shall be preferred, as the case may be, to the Ombudsman on an issue which—

- (a) has been or is the subject matter of any proceeding in an appeal, revision, reference or writ, before any Authority, Tribunal, Court, or Central Registrar;
- (b) has been or is the subject matter of any arbitral proceeding under section 84; or
- (c) is in respect of the same subject matter which was settled through the Ombudsman in any previous proceedings, whether or not received from the same complainant or appellant, or along with any one or more complainants or appellants, or any one or more of the parties concerned with the subject matter.

30H. Form and manner of complaint or appeal.—(1) A complaint by a member to the Ombudsman may be submitted through the physical or electronic mode (including a written complaint) or through an online portal designed for this purpose and notified by the Central Government.

(2) A complaint shall be submitted in Form VI annexed to these rules.

(3) An appeal shall be submitted in Form VII annexed to these rules.

30-I. Procedure for handling complaints and appeals by Ombudsman.— The Ombudsman shall deal with the complaints and appeals, which were brought before him, in the following manner, namely:—

- (a) the Ombudsman shall endeavour to follow the principles of natural justice, as far as is practicable, including providing a copy of the complaint or appeal, as the case may be, to the multi-State co-operative society, and providing such multi-State co-operative society an opportunity of being heard or responded;
- (b) if no such response is forthcoming from the multi-State co-operative society, the Ombudsman shall proceed to decide the complaint or appeal, as the case may be, on the basis of the information available before him; and
- (c) the Ombudsman shall complete the process of inquiry and adjudicate the complaint or appeal within a period of three months, from the date of receipt of the complaint or appeal, as the case may be, by a speaking order.

30J. Appeal to the Central Registrar.—(1) An appeal may be filed against the directions of the Ombudsman before the Central Registrar under sub-section (3) of section 85A in Form VIII annexed to these rules, within one month from the date of the order of the Ombudsman.

(2) The Central Registrar may, after giving the parties a reasonable opportunity of being heard, within a period of forty-five days, from the date of filing of appeal may—

- (a) dismiss the appeal; or
- (b) allow the appeal and set aside the directions passed by the Ombudsman; or
- (c) remand the matter to the Ombudsman for fresh disposal in accordance with such directions as the Central Registrar may consider necessary or proper; or
- (d) modify the directions of the Ombudsman and pass such directions as may be necessary to give effect to the directions of the Ombudsman so modified; or

(e) pass any other decision as he may be deem fit and proper in the circumstances of the case.

(3) The decision of the Central Registrar passed under sub-rule (2) shall be final and binding on all the parties.”.

8. In the principal rules, for Chapter 8, the following Chapter shall be substituted, namely: —

“APPLICATION TO THE CO-OPERATIVE INFORMATION OFFICER”

35. Manner of application to the Co-operative Information Officer under sub-section (2) of section 106.— (1) A member who desires to obtain information under sub-section (1) of section 106 of the Act, shall make an application in writing or through electronic means to the Co-operative Information Officer in Form IX annexed to these rules.

(2) A member making an application under sub-rule (1) shall not be required to give any reason for requesting the information or any other personal details, except those that may be necessary for contacting him.

(3) The application fee, other charges for supplying the information and manner of payment shall be such as prescribed under the provisions of the Right to Information (Regulation of Fee and Cost) Rules, 2005.”.

9. In the principal rules, after chapter 8, the following chapter shall be inserted, namely: —

“CHAPTER 8A

NATIONAL CO-OPERATIVE SOCIETIES

35A. Designation of National Co-operative Society.—(1) Subject to the provisions of section 116 of the Act, the Central Government may designate a multi-State co-operative society as a National Co-operative Society and the Central Government shall consider the following before such designation—

- (a) The area of operation of such society extends to the whole of India; and
- (b) Member co-operative societies admitted in the said society represents all the States and Union territories.

(2) A multi-State co-operative society designated as a National Co-operative Society under Second Schedule to the Act shall comply with the provisions of sub-rule (1), within six months from the date of publication of these rules.

(3) A National Co-operative Society shall, in accordance with the provisions of section 120 of the Act, file returns with the Central Registrar, providing the details that —

- (a) it has complied with the provisions of sub-rule (1);
- (b) it has complied with functions of federal co-operatives under section 24 of the Act;
- (c) it has taken steps for strengthening the cooperative movement in the country and deepening its reach to the grassroots in its area of work; and
- (d) the promotion of cooperative-based economic development model in its area of work, including the spirit of responsibility among its members to develop the country.

35B. Omission of National Co-operative Societies from Second Schedule.— Subject to provisions of section 116 of the Act, the Central Government may omit a National Co-operative Society from the Second Schedule of the Act, if it fails to comply with provisions of sub-rule (1) of rule 35A of these rules or on the ground of being non-functional.”.

10. In the principal rules, after rule 37, the following rules shall be inserted namely:—

“37A. Recruitment of employees in Co-operative Societies.— The recruitment of employees at various levels would be carried out through a transparent, objective and adequately publicised competitive process as per the educational and experience criteria specified in the bye-laws of the society.

37B. Qualifications for Chief Executive of non-credit multi-State co-operative societies.—The person to be appointed as Chief Executive of a non-credit multi-State co-operative society shall satisfy the following criteria, namely:—

- (a) shall be a graduate or have a diploma or equivalent in co-operative business management, agri-business management, dairy sector management, fisheries management, finance, chartered accountancy, cost accountancy, law, commerce, science, humanities, technology or any other relevant discipline; and
- (b) at least three years’ work experience in the co-operative sector:

Provided that a person with less than three years' work experience may be appointed by a special resolution passed by three-fourth of the board members, in which case the explanatory statement annexed to the notice for such motion shall indicate the justification for appointing such person.

37C. Recovery of proceeds under sub-section (6) of section 104.— (1) The competent court while passing an order under sub-section (6) of section 104 shall record the amount of unlawful gains made by the board of directors or officers of the multi-State co-operative society, jointly or severally, and from whom such unlawful gains shall be payable.

(2) A copy of the order referred to in sub-rule (1) shall be sent to the Central Registrar by the competent court referred to in sub-section (1) of section 105.

(3) Amount referred to in sub-rule (1) shall be treated as 'sums due' under section 98 and shall be recovered accordingly.

(4) The amount recovered as unlawful gains under sub-section (6) of section 104 shall be deposited in the Co-operative Rehabilitation, Reconstruction and Development Fund established under sub-section (1) of section 63A.

37D. Creation of electronic registry, database or portal by Central Government.— The Central Government may set up and maintain a secure electronic registry, database or portal in which all applications, returns, reports, statement of accounts, registers, byelaws, or any other particulars or documents and returns required to be filed under the Act or the rules made thereunder, are electronically stored.

37E. Manner of filing documents electronically under Act and rules made thereunder.— (1) Every application, communication, document, intimation, notice, return, report, statement of account, or any other particulars or document as may be required to be filed or delivered or served under this Act or the rules made thereunder shall be filed or delivered or served in computer readable electronic form, in portable document format (PDF) or in such other format as decided by the Central Registrar in respect of such application or form or document or declaration, to the Central Registrar through the portal maintained by the Central Government.

(2) Any correspondences (physically or electronically) and documents to be filed by any person shall contain the name, designation, address, membership number of the person signing such document and make sure correctness thereof and in no case, correspondences, merely with signature and writing authorized signatory shall be acceptable.

37F. Electronic maintenance, registration, and authentication of documents under Act and rules made thereunder.— (1) Every application, return, reports, statement of accounts, registers, bye-laws or any other particulars or document as may be required to be filed or delivered under the Act or the rules made thereunder shall be maintained by the Central Registrar in electronic form, and if required to be registered or authenticated, as the case may be by the Central Registrar under the Act or rules made thereunder, shall be registered or authenticated through affixing an electronic signature; or by an electronic signature certificate, consistent with the provisions of the Information Technology Act, 2000, the Aadhaar (Targeted. Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016, and such other laws as may be applicable, including any rules, regulations, guidelines, notifications, or circulars made under those legislations.

(2) For the authentication of electronic signatures referred to in sub-rule (1), the procedure laid down under the Information Technology Act, 2000, and other relevant laws, including any rules, regulations, guidelines, notifications, or circulars issued thereunder, shall be applicable.

37G. Electronic issuance of documents and communication by Central Registrar under section 120A.— (1) The Central Registrar shall perform duties or discharge functions or exercise powers under the Act or the rules made thereunder or do any act which is to be performed or discharged or exercised or done by the Central Registrar, as the case may be, in the electronic mode.

(2) Where the Central Registrar is not able to issue any certificate, receipt, endorsement, acknowledgement or approval or any other document or communication under the Act or the rules thereunder in electronic mode, for reasons to be recorded in writing, he may issue the same in physical form under manual signature affixing seal of his office.

(3) The Central Registrar may send any document, notice or any communication or intimation, as may be required to be served or delivered under the Act or the rules made thereunder, to the multi-State co-operative society, its authorised representatives or board of directors or both, in the electronic manner.

(4) Every multi-State co-operative society shall create and maintain at all times a valid electronic address, including an e-mail, user identifications capable of receiving and acknowledging receipt of such document, certificate, notice or other communication, automated or otherwise, and inform any changes in such electronic address to the Central Registrar within fifteen days of such change.”.

11. In the principal rules, Schedule shall be omitted.
12. In the principal rules, for Form III, the following Form shall be substituted, namely:—

“FORM III

[See rule 19J]

NOMINATION FORM FOR ELECTIONS OF BOARD OF DIRECTORS

1. Name of the multi-State co-operative society:
2. Society and Address:
3. Name of the candidate in case of an Individual member or name of the delegate and the member cooperative Society or multi-State cooperative society which he is representing:
4. Serial no. in the register of members:
5. Father's/Mother's or spouse's name (in case of individual member):
6. Address:
7. Name of the proposer in case the proposer is an individual member and the name of the society and the delegate in the case proposer is a delegate of a society:
8. Serial no. of the proposer in the Register of members:
9. Signature of the proposer:
10. Name of the seconder when the seconder is an individual member and name of the society:
11. Serial no. of the seconder in the register of members:
12. Signature of the seconder:

CANDIDATES DECLARATION

I....., s/o, Member No..... ofsociety hereby declare that I am willing to stand for election and that, to the best of my knowledge and belief I am qualified and have not incurred any disqualification for membership of the board of _____ multi-State co-operative society in terms of the Act, the rules made thereunder and the bye-laws of the multi-State cooperative society.

(Signature of the candidate)

ENDORSEMENT BY THE RETURNING OFFICER

This nomination Form was presented to me in person by _____/ received by registered post on _____ at _____ hrs.

Place _____
Date _____

Signature of Returning Officer Or person authorised by him.”.

13. In the principal rules, for Form IV, the following Form shall be substituted, namely:—

“FORM IV
[See rule 19M]

APPLICATION FOR APPOINTING ELECTION AGENT

I, _____ name of father/mother/spouse _____ member of _____ (name of the society) contesting for election of members of board of directors/office bearers do hereby nominate the following person as my election agent/counting agent in the election _____ (name of the society) to be held on _____ (specify the date).

Name of the Agent:

I.D/AAdhaar No.....

Counter signature of the Agent.

Name and Signature of the candidate”.

14. In the principal rules, for Form V, the following Forms shall be substituted, namely: -

“FORM V
[See rule 19N]

NOMINATION FORM FOR ELECTION OF OFFICE BEARERS

1. Name of the multi-State co-operative and Address:
2. Offer for which contesting:
3. Name of the candidate in case of an Individual member or name of the delegate and the member cooperative Society or multi-state cooperative society which he is representing:
4. Serial no. in the register of members:
5. Father's/Mother's/Spouse's name (in case of individual member):
6. Address:
7. Name of the proposer in case the proposer is an individual member and the name of the society and the delegate in the case proposer is a delegate of a society:
8. Serial no. of the proposer in the Register of members:
9. Signature of the proposer:
10. Name of the seconder when the seconder is an individual member and name of the society:
11. Serial no. of the seconder in the register of members:
12. Signature of the seconder:

CANDIDATES DECLARATION

I....., s/o, Member No..... ofsociety hereby declare that I am willing to stand for election and that, to the best of my knowledge and belief I am qualified and have not incurred any disqualification for membership of the board of _____ multi-State co-operative society in terms of the Act, the rules made thereunder and the bye-laws of the multi-State cooperative society.

(Signature of the candidate)

ENDORSEMENT BY THE RETURNING OFFICER

This nomination Form was presented to me in person by _____/ received by registered post on _____ at _____ hrs.

Place _____

Date _____

Signature of Returning Officer or person authorised by him.

FORM VI

[See rule 30H (2)]

FORM OF COMPLAINT

(TO BE FILLED UP BY THE COMPLAINANT)

[All fields are mandatory except wherever indicated otherwise]

To
The Co-operative Ombudsman

Madam/Sir,

Sub: Complaint against (Name of the multi-State co-operative society)

1. Name of the complainant:

2. Age (years):

3. Gender:

4. Full address of the complainant:

- Pin Code:
- Phone No. (if available):
- Mobile Number:
- E-mail (if available):

5. Complaint against: *(Name and full address of the multi-State co-operative society)*

6. Membership number, or relevant details relating to membership:

7. Mode of filing: Through portal/in physical form/electronically *(Please tick the appropriate option)*

8. (a) Date and details of complaint already made by the complainant to the multi-State co-operative society: *(Please enclose a copy of the complaint)*

(b) Whether such complaint was rejected or no reply was received within one month from the date of such complaint or whether the complainant is not satisfied with the reply of the multi-state co-operative society?

(c) Whether the complaint has been made not later than one month after the reply of the multi-state co-operative society; or where no reply is received, not later than two months from the date of making the complaint to such society?

9. Please tick the relevant box (Yes/No):

Whether your complaint:

- is sub-judice before any Authority, Tribunal, Court, or the Central Registrar or is the subject matter of arbitration under section 84? Yes/No

- is in respect of the same subject matter which was settled through the Ombudsman in any previous proceedings, whether or not instituted by the same complainant, or along with any one or more complainants, or any one or more of the parties concerned with the subject matter? Yes/No
- is made through an authorised representative? Yes/No

10. Details of the complaint:

11. Relief sought from the Ombudsman: *(Please enclose a copy of documentary proof, if any, in support of your claim)*

12. List of documents enclosed:

Declaration

(i) I, _____ s/o _____, the complainant herein declares that—

(a) the information furnished above is true and correct; and

(b) I have not concealed or misrepresented any fact stated above and the documents submitted herewith.

(ii) (a) Where a response from the multi-State co-operative society has been received: The complaint is filed before the expiry of one month after receiving the reply of the multi-State co-operative society;

(b) Where a response from the multi-State co-operative society has not been received: The complaint is filed before the expiry of two months after the representation to the multi-State co-operative society was made.

Yours faithfully

(Signature of the Complainant/Authorised Representative)

AUTHORISATION

If the complainant wants to authorise a representative to appear and make submission on her/his behalf before the Ombudsman, the following declaration shall be submitted:—

I _____, s/o _____, the complainant hereby nominate Shri/Smt. _____ as my authorised representative whose contact details are as below:

Full Address:

Pin Code:

Phone No:

Mobile Number:

E-mail:

Yours faithfully,

(Signature of the Complainant)

FORM VII
[See rule 30H (3)]

FORM OF APPEAL AGAINST DECISION OF THE CO-OPERATIVE INFORMATION OFFICER

[All fields are mandatory except wherever indicated otherwise]

To

The Co-operative Ombudsman

Madam/Sir,

Sub: Appeal against (Name of the multi-State co-operative society)

Details of the appeal:

1. Name of the appellant:

2. Age (years):

3. Gender:

4. Full address of the appellant:

- Pin Code:
- Phone No. (if available):
- Mobile Number:
- E-mail (if available):

5. Appealed against: *(Name and full address of the multi-State co-operative society)*

6. Membership number, or relevant details relating to membership:

7. Mode of filing: Through portal/in physical form/electronically *(Please tick the appropriate option)*

8. (a) Date and details of application by the appellant to the Co-operative Information Officer: *(Please enclose a copy of the complaint)*

(b) Whether the requisite information has or has not been received from the Co-operative Information Officer within the period of thirty days from the date of receipt of application, as indicated under sub-section (3) of Section 106 of the Act? Yes/No *(please enclose a copy of the reply)*

9. Please tick the relevant box (Yes/No):

Whether your appeal:

- is made through an authorised representative? Yes/No
- has already been dealt with or is under process on the same ground with the Ombudsman? Yes/No

10. Details of the appeal:

11. Relief sought from the Ombudsman in this appeal:

12. List of documents enclosed:

Declaration

(i) I,,s/o.....the appellant herein declare that—

(a) the information furnished above is true and correct; and

(b) I have not concealed or misrepresented any fact stated above and the documents submitted herewith.

(ii) The appeal is filed before the expiry of one month from the date of the orders of the Co-operative Information Officer, in accordance within the time-period provided under sub-section (4) of section 106.

Yours faithfully

(Signature of the Appellant/Authorised Representative)

AUTHORISATION

If the complainant wants to authorise a representative to appear and make submission on her/his behalf before the Ombudsman, the following declaration shall be submitted:—

I , s/o....., the complainant hereby nominate Shri/Smt..... as my authorised representative whose contact details are as below:

Full Address:

Pin Code:

Phone No:

Mobile Number:

E-mail:

Yours faithfully,

(Signature of the Appellant)

FORM VIII

[See rule 30J (1)]

FORM OF APPEAL BEFORE THE CENTRAL REGISTRAR

[All fields are mandatory except wherever indicated otherwise]

To
The Central Registrar

Madam/Sir,

Sub: Appeal against decision of the Co-operative Ombudsman datedby.....
(Name of the appellant)

Details of the appeal:

1. Name of the appellant:

2. Full address of the appellant:

- Phone No. (if available):
- E-mail (if available):

3. Appeal against: *(Details of the directions passed by the Co-operative Ombudsman, with date and other particulars)*

4. Mode of filing: Through portal/in physical form/electronically *(Please tick the appropriate option)*

5. Details of the appeal:

6. (a) Date and details of original complaint made to the Ombudsman: *(Please enclose a copy of the original complaint, along with all relevant documents)*

(b) Details of directions passed by the Ombudsman: *(Please enclose a copy of the direction(s) passed by the Ombudsman, along with copies of all relevant documents)*

7. Please tick the relevant box (Yes/No):

Whether your appeal is made through an authorised representative? Yes/No

8. Relief sought from the Central Registrar, in appeal: *(Please enclose a copy of all documentary proofs, if any, in support of your appeals)*

9. List of documents enclosed:

Declaration

(i) I,.....,s/o....., the appellant herein declare that—

(a) the information furnished above is true and correct; and

(b) I have not concealed or misrepresented any fact stated above, and in the documents submitted herewith.

(ii) (a) If the appeal is being filed on-time: The appeal is filed before the expiry of one month reckoned in accordance with section 85A(3).

(b) If the appeal is being filed after the expiry of one month on account of sufficient cause: The appeal is filed after the expiry of one month, as provided under Section 85A(3), for sufficient cause being the following:

(Please indicate such cause here).

Yours faithfully,

(Signature of the Appellant/Authorised Representative)

AUTHORISATION

If the complainant wants to authorise a representative to appear and make submission on her/his behalf before the Ombudsman, the following declaration shall be submitted:—

I , s/o....., the complainant hereby nominate Shri/Smt..... as my authorised representative whose contact details are as below:

Full Address:

Pin Code:

Phone No:

Mobile Number:

E-mail:

Yours faithfully,

(Signature of the Appellant)

FORM IX

[See rule 35(1)]

APPLICATION TO THE CO-OPERATIVE INFORMATION OFFICER

Application number (For Official use):

Dated:

To:

The Co-operative Information Officer,
[Name of multi-State co-operative society]
[Address]
[State]
[PIN Code]

Subject: Request for information under sub-section (2) of Section 106 of the Multi-State Co-operative Societies Act, 2002

Sir,

1. I [name] Son/Daughter/Wife of [name] Resident of [address] wish to seek the following information, under sub-section (2) of section 106 of the Multi-State Co-operative Societies Act, 2002.
2. The information pertains to the [name of Multi-State Co-operative Society] as per details given below:
3. I certify that I am a member of the [name of Multi-State Co-operative Society] [as on date], with membership number.....
4. I certify that the information requested under para 1 is confined to information relating to affairs and management of the [name of Multi-State Co-Operative Society] and that this information is confined to the information falling under the disclosure norms specified by the [name of Multi-State Co-operative Society] in its bye-laws, as per sub-section (1) of section 106 of the Multi-State Co-operative Societies Act, 2002.
5. I have deposited the required amount towards application fee (*Receipt enclosed*) vide receipt no. _____ dated _____.
6. I also undertake to pay any additional fees/charges (if applicable) as may be required to be paid the relevant rules.

Yours faithfully,

(Signature of the Member)

Address:

Membership number, or relevant details relating to membership:

Telephone No:

E-mail Address:

Date:

[Enclosed: Receipt No. _____ dated _____, towards application fees]".

[F. No. L-11012/02/2002-L&M (Part II)

VIJAY KUMAR, Special Secy.